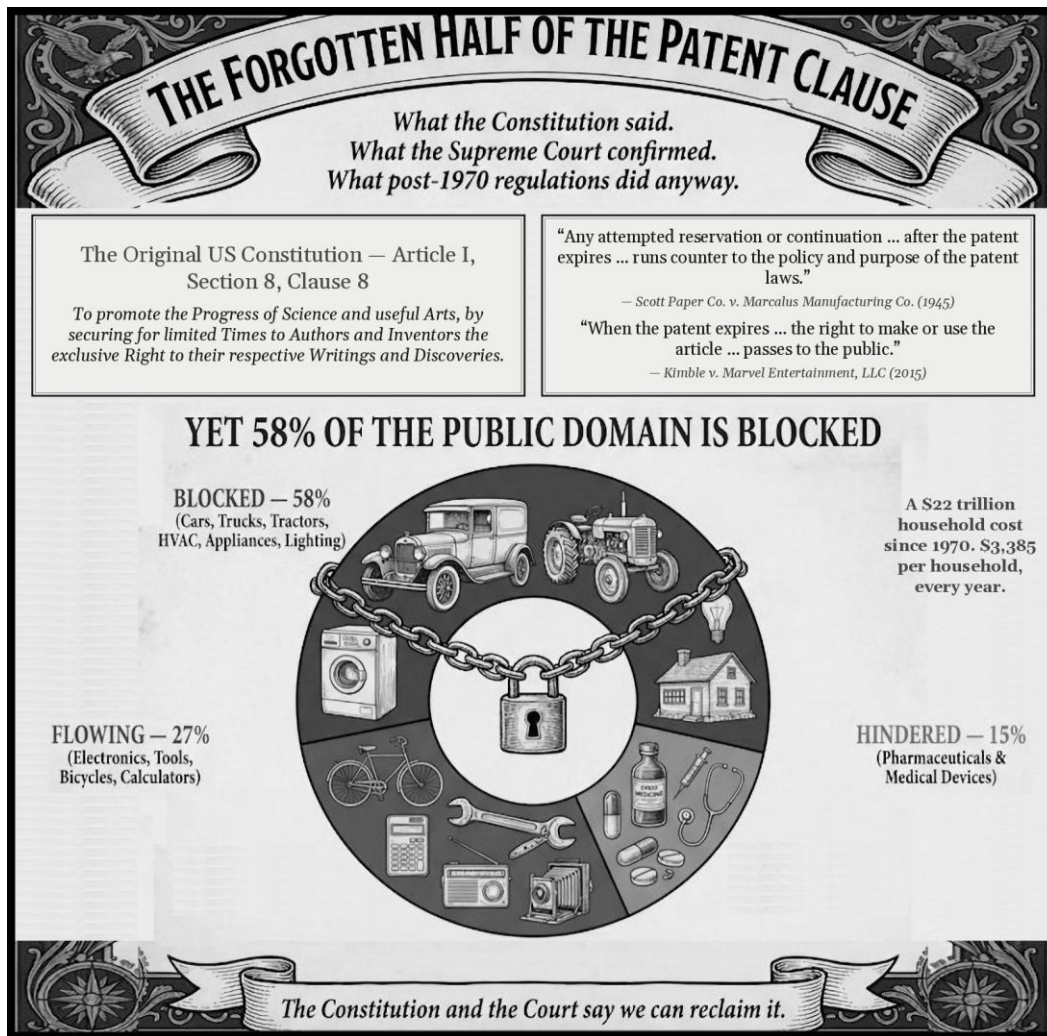


The Forgotten Half of the Patent Clause

How Federal Regulations Doubled the Cost of American Living and Rewrote the Constitution

(A solicitation seeking a confidential book review)



The work argues that a promise written into Article I, Section 8 has been quietly nullified since 1970, and that a single federal courtroom can restore it. No federal court has ever ruled on the question.

The claim, in a paragraph

Article I, Section 8, Clause 8 was written in 1787, more than two years before Congress passed the first patent law. Its words — “securing for limited Times to Authors and Inventors the exclusive Right...” — are therefore a constitutional limit on securing exclusivity by any means, not merely a rule governing patent statutes. For 183 years no second federal power intruded on that limit; the encroachments the Court did strike came from state law and private contract. When a patent expires, the engineering design passes to the public: anyone may make, use, and improve it, while the original maker’s brand and logo remain protected. Yet since 1970, federal energy, emissions, and safety standards have created a second, potentially permanent exclusion. No rule expressly forbids remanufacture. But a faithful remake of a decades-old design must meet standards written for newly designed products — standards that design can rarely be made to satisfy without ceasing to be that design. The practical result is overwhelmingly a ban: the patent monopoly ends, and the exclusion from low-cost competition survives it. That barrier reaches an estimated 58 percent of expired-patent commerce, and the book projects what its removal would return. Five years after a ruling, a household choosing remade goods wherever they are offered recovers roughly a third of what it now spends across these categories. A household that buys nothing remade still recovers about fifteen percent, because the new tier has to price against the remade tier beside it on the lot. The households that gain most are in the bottom forty percent, who will choose the remade item over the newly patented one most often, and for whom that recovery is the largest share of income. A general regulatory power cannot be used to accomplish what the specific constitutional limitation forbids. The argument rests on two constitutional prongs — the Patent Clause and the

Takings Clause — and seeks neither deregulation nor weaker standards. It proposes a narrow time-shift: a certified remake of a fully expired design would meet the standards applicable to its original platform year, while modern standards would remain fully in force for new designs.

What the book is

The book is 591 pages long. Every source carries [a live link](#) and [cites 85 Supreme Court Cases](#) surveyed and noted. Gord Magill, author of “[End of the Road: Inside the War on Truckers](#),” wrote the foreword; owner-operators are the strongest plaintiff category the work identifies among 19 identified categories. Gord Magill has discussed his book and the industry twice on [The Tucker Carlson Show](#) (also [January 2024](#)), on [C-SPAN’s Washington Journal](#), on War Room with Stephen K. Bannon [Ep. #4726](#) and on Fox’s [Ingraham Angle](#). He writes at [Autonomous Truck\(er\)s](#) and hosts the podcast Voice of GO(r)D.

Sample Chapters in the book:

Why Nobody Noticed: How a Constitutional Violation Hides in Plain Sight	When Outsiders Advance Constitutional Law and Other Disciplines
The Patent Clause Prong: “Limited Times” as Constitutive Language	The Takings Clause Prong: Property the Government Cannot Cancel for Free
The Environmental Question: Why Restoring the Patent Bargain Does Not Unleash 1970s Emissions	The Trucker’s Burden: A Constitutional Brief for the American Cab
Why Wealthy Nations Break the Patent Promise That Poor Nations Honor	When the Bargain Worked: Pre-1900 American Prosperity
Reason the Constitutional Argument Yourself: The Open-Book Examination	What You Can Do: A Citizen’s Playbook
The Filable Case: Why 2026 and Not Before	Objections Considered

How to get it — just reply

There is no book link printed here, and that is deliberate. Send me a line saying you are interested and I will reply with a private link to the PDF book version; you can be reading it the same day. If you would rather hold it in print, ask and a bound copy can arrive in the mail — print-on-demand, so allow about three weeks. The draft of the book is available on the same request, in print or PDF. What I ask in return is one promise. This is an Author’s Review Copy, not a published book. The link is confidential — please do not post it on social media, a website, or any public medium, and do not re-distribute the PDF. A freely circulating condensed edition could read to a publisher as competing with the book itself. If a colleague should see it, tell me and I will send them their own link.

Four public addresses, if you would rather look before you answer

[https://marti124.github.io/Patent Exam](https://marti124.github.io/Patent_Exam)

Three chapters in full, the Brief, an Invitation to Review, and the open-book examination materials — primary sources, prompts, and scoring sheet — so you can put the question to an AI model and judge the reasoning yourself, as eleven engines did, with all of them agreeing there is a constitutional conflict here. It includes the legal research system OpenCase.

[https://marti124.github.io/Patent EndNotes](https://marti124.github.io/Patent_EndNotes)

The endnotes, glossary, and key-terms apparatus — over 240 pages, every citation with a live link. It includes Appendix A, the SCOTUS Case Master Table: over 80 Supreme Court case cited, sorted by decision year, each described for what it actually holds. Inclusion is not endorsement — the cases that cut against the argument are in there too, and say so.

[https://marti124.github.io/Patent Letters](https://marti124.github.io/Patent_Letters)

Letter and packet generators for the Make American Living Affordable campaign, each aimed at a group with a concrete stake: sheriffs, governors and attorneys general, trucking and farm associations, health and lighting advocates, tribal leadership, public-domain scholars.

This handout.

What is being asked

A few sentences from you would help this work reach a publisher. Say whatever moves you: that the argument deserves a public hearing, that a question no federal court has ever ruled on deserves an answer, or simply that you want remanufacturing back, by the courts or by Congress. No legal opinion is expected — enthusiasm for the subject counts for as much. Please add a half-line about who you are: trucker, attorney, farmer, sheriff, engineer. It shows a publisher who this argument reaches. If it suits someone else better, share this handout with them.

Roleigh Martin · Northern Kentucky · RoleighMartin@proton.me · x.com/RoleighMartin/articles

To talk it over by phone, text first at 952-905-0822. Eastern time. Email or an X message is also the place to ask for the link or the book. Below: the proposed remedy in a single diagram.

The Desired SCOTUS Ruling Time-Shifts Regulations for Remanufacturing; the Commons Opens

THE PRINCIPLE

The regulatory standards for the original invention should be the same for a patent-expired remake — equal justice (standing) under the Patent Clause. A remake can happen if it need only meet the original standards.

THE PROBLEM TODAY

Current standards have ratcheted up and make it impossible to remanufacture the expired-patent item. The remedy time-shifts the rule back to the original's standard — the public's remake need meet only what the original met.

THE REGULATORY STANDARD

A grandfather exemption, earned by independent engineering certification, time-shifts the remanufactured design to the standards in force when its original was certified.

THE PATENT TERM

the exclusive right, granted for a limited Time

the patent still ends on schedule — it was never what blocked the public

THE MANUFACTURER'S PROTECTION

from low-cost remanufactured competition

THE CERTIFICATION GATE

A remanufactured patent-expired design passes the gate only if it contains nothing still under patent and meets the federal safety and emissions standards of its certified platform year — confirmed by independent engineering certification.

this protection ends.

Low-cost remanufactured competition is lawful again.

THE EXPIRED-PATENT COMMONS

Now open — the public may make, copy, improve, and remanufacture.

Held to the standards the original met — only the brand name and logo stay with the original maker.

the patent-expired invention

patent filing

Patent expires — the “limited Time” ends

time →

Simplified: the patent is shown expiring in the present, with remanufacturing desired now. The standard's applicability is time-shifted to the original's certified year — the wall stands, but for the remake it speaks the standards of that year.